

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

ANSWER

Respondent The Port Authority of New York and New Jersey (the "Port Authority") by and through its undersigned counsel, respectfully submits this Answer in response to the Complaint filed by Port Elizabeth Terminal & Warehouse Corp. ("PETW"). To the extent not specifically admitted herein, all allegations of the Complaint are denied. Furthermore, the section headings contained herein are included only for purposes of clarity and organization, and the Port Authority does not admit, but rather hereby specifically denies, any factual or legal allegations in the headings used in the Complaint.

I. Complainant

A. The Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph 1.A of the Complaint.

B. The Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph 1.B of the Complaint.

II. Respondent

A. The Port Authority admits that it is a body corporate and politic created by Compact between the States of New York and New Jersey and with the consent of the Congress, with its principal place of business at 4 World Trade Center, 150 Greenwich Street, New York, New York.

B. The Port Authority admits that it operates certain marine terminal facilities in the New York – New Jersey area, including in Elizabeth, New Jersey. The Port Authority denies the remaining allegations contained in Paragraph II.B of the Complaint.

III. Jurisdiction

A. To the extent the allegations contained in Paragraph III.A of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority admits that it is a marine terminal operator within the meaning of the Shipping Act, 46 U.S.C. § 40102(14). The Port Authority denies the remaining allegations contained in Paragraph III.A of the Complaint.

B. To the extent the allegations contained in Paragraph III.B of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph III.B of the Complaint.

C. To the extent the allegations contained in Paragraph III.C of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph III.C of the Complaint.

D. The Port Authority admits that it and PNCT are parties to agreement LPN-264, and that it and PETW are parties to agreement LPN-297. The Port Authority is without information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph III.D of the Complaint.

E. The Port Authority admits that it and PETW are parties to agreement LPN-297.

F. The Port Authority admits that it and PNCT are parties to agreement LPN-264 filed with the Commission and designated FMC Agreement No. 201132. To the extent the allegations in Paragraph III.F of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority denies the allegations pertaining to jurisdiction contained in Paragraph III.F of the Complaint.

G. To the extent the allegations contained in Paragraph III.G of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority admits that it is a marine terminal operator within the meaning of the Shipping Act, 46 U.S.C. § 40102(14), and denies the remaining allegation contained in Paragraph III.G of the Complaint.

IV. Statement of Facts and Matters Complained of

A. The Port Authority admits that it and PETW are parties to agreement LPN-297. The Port Authority is without information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph IV.A of the Complaint.

B. The Port Authority admits that it and PETW are parties to agreement LPN-297. The Port Authority is without information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph IV.B of the Complaint.

C. The Port Authority admits that it and PETW are parties to agreement LPN-297. The Port Authority is without information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph IV.C of the Complaint.

D. The Port Authority admits that it and PETW are parties to agreement LPN-297. The Port Authority is without information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph IV.D of the Complaint.

E. The Port Authority admits that it and PETW are parties to agreement LPN-297. The Port Authority is without information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph IV.E of the Complaint.

F. To the extent the allegations contained in Paragraph IV.F of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph IV.F of the Complaint.

G. To the extent the allegations contained in Paragraph IV.G of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph IV.G of the Complaint.

H. The Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph IV.H of the Complaint.

I. The Port Authority admits that it and PETW are parties to agreement LPN-297. The Port Authority is without information sufficient to form a belief as to the truth of the remaining allegations contained in Paragraph IV.I of the Complaint.

J. The Port Authority admits that it and PETW are parties to agreement LPN-297. The Port Authority denies the remaining allegations contained in Paragraph IV.J of the Complaint.

K. The Port Authority admits that LPN-297 is dated November 1, 2009. The Port Authority denies the remaining allegations contained in Paragraph IV.K of the Complaint.

L. The Port Authority admits that LPN-207 includes Buildings 201 and 202 of the Premises. The Port Authority denies the remaining allegations contained in Paragraph IV.L of the Complaint.

M. The Port Authority admits that LPN-297 provided that it shall expire if not sooner terminated on October 31, 2019. The Port Authority denies the remaining allegations in Paragraph IV.M of the Complaint.

N. The Port Authority denies the allegations contained in Paragraph IV.N of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW.

O. The Port Authority denies the allegations contained in Paragraph IV.O of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW.

P. The Port Authority denies the allegations contained in Paragraph IV.P of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW.

Q. The Port Authority denies the allegations contained in Paragraph IV.Q of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW.

R. The Port Authority denies the allegations contained in Paragraph IV.R of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW.

S. The Port Authority denies the allegations contained in Paragraph IV.S of the Complaint in the form alleged, but admits that it is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

T. The Port Authority denies the allegations contained in Paragraph IV.T of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

U. To the extent the allegations contained in Paragraph IV.U of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority denies the allegations contained in IV.U of the Complaint.

V. The Port Authority denies the allegations contained in Paragraph IV.V of the Complaint.

W. The Port Authority neither admits nor denies the allegations contained in Paragraph IV.W of the Complaint, which consist solely of PETW's interpretations of the LPN-297 and LPN-264 agreements, and respectfully refers the Court to those agreements for the true contents thereof in proper context. The Port Authority denies the remaining allegations contained in Paragraph IV.W of the Complaint.

X. The Port Authority neither admits nor denies the allegations contained in Paragraph IV.X of the Complaint, which consist solely of PETW's interpretations of the LPN-

297 and LPN-264 agreements, and respectfully refers the Court to those agreements for the true contents thereof in proper context. The Port Authority denies the remaining allegations contained in Paragraph IV.X of the Complaint.

Y. The Port Authority neither admits nor denies the allegations contained in Paragraph IV.Y of the Complaint, which consist solely of PETW's interpretation of the LPN-264 agreement, and respectfully refers the Court to those agreements for the true contents thereof in proper context. The Port Authority denies the remaining allegations contained in Paragraph IV.Y of the Complaint.

Z. The Port Authority neither admits nor denies the allegations contained in Paragraph IV.Z of the Complaint, which consist solely of PETW's interpretations of the LPN-297 and LPN-264 agreements, and respectfully refers the Court to those agreements for the true contents thereof in proper context. The Port Authority denies the remaining allegations contained in Paragraph IV.Z of the Complaint.

AA. The Port Authority neither admits nor denies the allegations contained in Paragraph IV.AA of the Complaint, which consist solely of PETW's interpretations of the LPN-297 and LPN-264 agreements, and respectfully refers the Court to those agreements for the true contents thereof in proper context. The Port Authority denies the remaining allegations contained in Paragraph IV.AA of the Complaint.

BB. The Port Authority denies the allegations contained in Paragraph IV.BB of the Complaint.

CC. The Port Authority neither admits nor denies the allegations contained in Paragraph IV.CC of the Complaint, which consist solely of PETW's interpretations of the LPN-297 and LPN-264 agreements, and respectfully refers the Court to those agreements for the true

contents thereof in proper context. The Port Authority denies the remaining allegations contained in Paragraph IV.CC of the Complaint.

DD. To the extent the allegations contained in Paragraph IV.DD of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority is without information sufficient to form a belief as to the truth of the allegations contained in Paragraph IV.DD of the Complaint.

EE. The Port Authority denies the allegations contained in Paragraph IV.EE of the Complaint.

FF. The Port Authority denies the allegations contained in Paragraph IV.FF of the Complaint.

GG. The Port Authority denies the allegations contained in Paragraph IV.GG of the Complaint.

HH. To the extent the allegations contained in Paragraph IV.HH of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority denies the allegations contained in IV.HH of the Complaint.

II. The Port Authority denies the allegations contained in Paragraph IV.II of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

JJ. The Port Authority denies the allegations contained in Paragraph IV.JJ of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

KK. The Port Authority denies the allegations contained in Paragraph IV.KK of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

LL. The Port Authority denies the allegations contained in Paragraph IV.LL of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

MM. The Port Authority denies the allegations contained in Paragraph IV.MM of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

NN. The Port Authority denies the allegations contained in Paragraph IV.NN of the Complaint.

OO. The Port Authority denies the allegations contained in Paragraph IV.OO of the Complaint.

PP. The Port Authority denies the allegations contained in Paragraph IV.PP of the Complaint.

QQ. The Port Authority denies the allegations contained in Paragraph IV.QQ of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

RR. The Port Authority denies the allegations contained in Paragraph IV.RR of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

SS. The Port Authority denies the allegations contained in Paragraph IV.SS of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

TT. The Port Authority denies the allegations contained in Paragraph IV.TT of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

UU. The Port Authority denies the allegations contained in Paragraph IV.UU of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

VV. The Port Authority denies the allegations contained in Paragraph IV.VV of the Complaint in the form alleged, but admits that on May 4, 2017, it caused to be filed a Verified Complaint in the Superior Court of New Jersey seeking to evict PETW from Buildings 201 and 202.

WW. The Port Authority denies the allegations contained in Paragraph IV.WW of the Complaint in the form alleged, but admits that on May 4, 2017, it caused to be filed a Verified

Complaint in the Superior Court of New Jersey seeking to evict PETW from Buildings 201 and 202.

XX. The Port Authority denies the allegations contained in Paragraph IV.XX of the Complaint.

YY. To the extent the allegations contained in Paragraph IV.YY of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority denies the allegations contained in Paragraph IV.YY of the Complaint.

ZZ. The Port Authority denies the allegations contained in Paragraph IV.ZZ of the Complaint.

AAA. The Port Authority denies the allegations contained in Paragraph IV.AAA of the Complaint.

V. Violations of the Shipping Act

A. The Port Authority denies the allegations contained in Paragraph V.A of the Complaint.

VI. Injury to Port Elizabeth Terminal & Warehouse Corp.

A. The Port Authority denies the allegations contained in Paragraph VI.A of the Complaint.

VII. Prayer for Relief

A. The Port Authority denies the allegations contained in Paragraph VII.A of the Complaint in the form alleged, but admits that it has engaged in good faith negotiations with PETW and is seeking PETW to vacate Buildings 201 and 201 pursuant to § 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights.

B. To the extent the allegations contained in Paragraph VII.B of the Complaint constitute legal conclusions, no response is required. To the extent that a response is required, the Port Authority denies the remaining allegations contained in Paragraph VII.B of the Complaint.

ADDITIONAL OR AFFIRMATIVE DEFENSES

First Additional or Affirmative Defense

The Port Authority's actions were justified because it acted in accordance with the Shipping Act. Pursuant to Federal Maritime Commission Rules of Practice and Procedure § 502.62(b)(2)(iv), the Port Authority states the following additional facts on which this and the following affirmative defenses are based, including but not limited to, that as of August 4, 2017, PETW was in arrearage to the Port Authority for back rent and other charges in the amount of approximately \$3,126,809.24.

Furthermore, § 41 of LPN-297, titled Additional Termination Rights/Recapture Rights, provides, in relevant part, that "[i]n addition to all other rights under this Agreement, as to ... the Building 201 Premises, the Building 202 Premises ... both the Port Authority and the Lessee shall have the right to terminate the letting under the Agreement, without cause, effective at any time from and after October 31, 2015, on one (1) year's prior written notice to the other party."

On April 19, 2016, the Port Authority served a Notice of Termination upon PETW effective May 1, 2017, with the last day of beneficial occupancy being April 30, 2017. By email dated April 20, 2016, PETW acknowledged receipt of the Notice of Termination. PETW remains in occupation, possession and control of the Port Authority's property notwithstanding the termination of the letting as to Buildings 201 and 202 of the Premises and without consent of the Port Authority.

Second Additional or Affirmative Defense

The Complaint fails to state a claim upon which relief can be granted.

Third Additional or Affirmative Defense

The Complaint is barred in whole or in part by the doctrine of laches, acquiescence, waiver, estoppel and other equitable and/or claim preclusion doctrines.

Fourth Additional or Affirmative Defense

PETW's claims are barred in whole or in part by the doctrine of unclean hands.

Fifth Additional or Affirmative Defense

PETW's claims are barred by the applicable statute of limitations.

Sixth Additional or Affirmative Defense

PETW is not entitled to the relief sought because PETW materially breached its obligations under the Lease Agreement.

Seventh Additional or Affirmative Defense

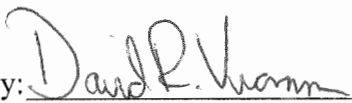
PETW has failed to comply with the conditions prerequisite to suit against the Port Authority as set forth in the Port Authority's Compact at N.J.S.A. 32:1-157 *et seq.* and N.Y. Unconsol. Laws Section 7101 *et seq.*

WHEREFORE, Respondent prays that the Complaint in this proceeding be dismissed with prejudice.

Dated: New York, New York
August 17, 2017

Respectfully submitted,

THE PORT AUTHORITY OF NEW YORK AND
NEW JERSEY LAW DEPARTMENT
Attorneys for Respondent
The Port Authority of New York and New Jersey,

By: 
David R. Kromm, Esq.
4 World Trade Center, 24th Floor
150 Greenwich Street
New York, New York 10003
Telephone No.: (212) 435-3483

TO: LAW OFFICE OF DONALD F. BURKE
Attorneys for Complainant
Port Elizabeth Terminal & Warehouse Corp.
Donald F. Burke, Esq.
45 Gale Road
Brick Township, New Jersey 08723
(732) 966-4922

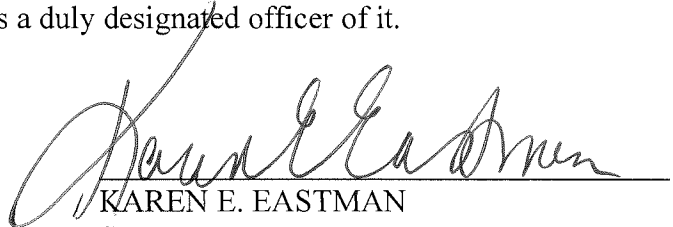
LAROE, WINN, MOERMAN AND DONOVAN
Attorneys for Complainant
Port Elizabeth Terminal & Warehouse Corp.
Paul M. Donovan, Esq.
1250 Connecticut Avenue, N.W., Suite 200
Washington, D.C. 20036

Port Elizabeth Terminal & Warehouse v. Port Authority of New York and New Jersey

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

KAREN E. EASTMAN, being duly sworn, deposes and says:

That she is the Secretary of THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY, which is a body, corporate and politic, created by Compact between the States of New York and New Jersey with the consent of the Congress of the United States, and that deponent has read the foregoing VERIFIED ANSWER and I verify, upon information and belief, that the contents thereof are true and accurate, and I further state that the reason why this verification is made by deponent, and not by defendant, is that defendant is a body, corporate and politic, and your deponent, as its Secretary, is a duly designated officer of it.


KAREN E. EASTMAN
Secretary

Sworn to before me this
17th day of August 2017


NOTARY PUBLIC

Natalie D. Russell
NOTARY PUBLIC, State of New York
No. 01RU6358214
Qualified in New York County
Commission Expires May 8, 2021

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

AFFIDAVIT OF SERVICE

Alea K. Roberts, being duly sworn, deposes and says:

That I am a Law Intern in The Port Authority of New York and New Jersey Law Department, am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, New York, New York.

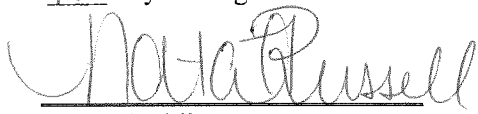
That on the 17th day of August 2017, I served the annexed ANSWER upon:

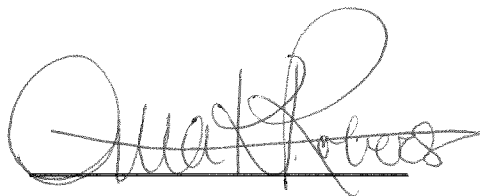
Law Offices of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723
Attn: Donald F. Burke, Esq.

LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue NorthWest, Suite 200
Washington, DC 20036
Attn: Paul M. Donovan, Esq.

by depositing a true copy thereof in a sealed wrapper, in a depository maintained by FedEx Express to be shipped via FedEx Overnight Service at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, NY 10007.

Sworn to before me this
17th day of August 2017.


Natalie D. Russell
Notary Public



Natalie D. Russell
NOTARY PUBLIC, State of New York
No. 01RU6358214
Qualified in New York County
Commission Expires May 8, 2021

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 DAVID R. KROMM, ESQ.
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 NEW YORK, NY 10007
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TO **DONALD F. BURKE, ESQ.**
ATTORNEY AT LAW
45 GALE ROAD

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(732) 966-4922

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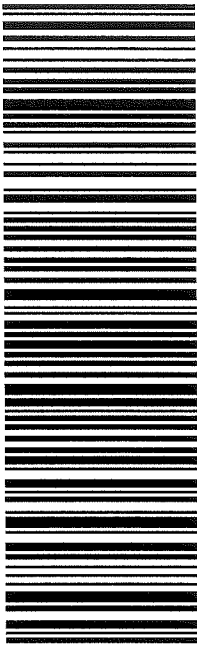
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TO **PAUL M. DONOVAN, ESQ.**

LAROE, WINN, MOERMAN & DONOVAN
1250 CONNECTICUT AVENUE NORTHWEST

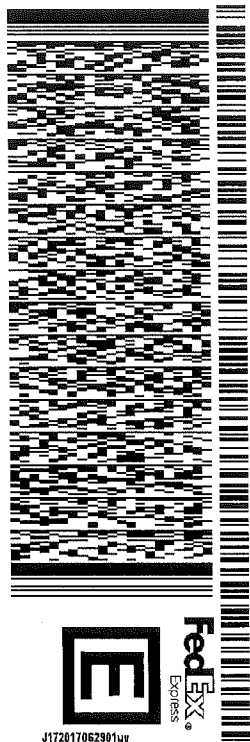
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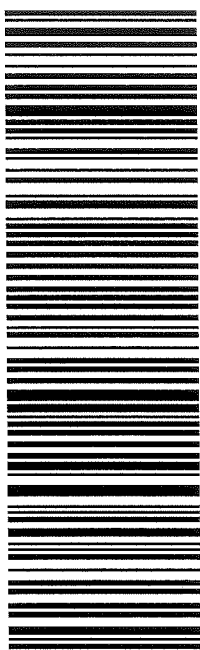
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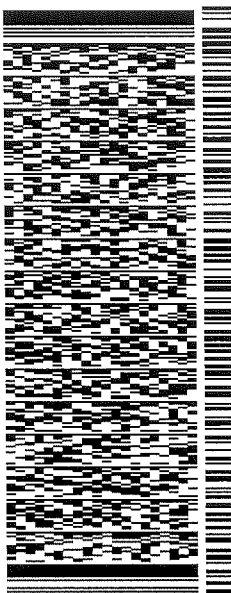
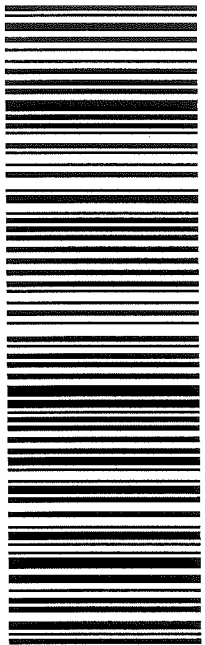


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